

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Chief Judge Philip A. Brimmer

Civil Action No.: 16-cv-00447-PAB-KLM
Courtroom Deputy: Sabrina Grimm

Date: October 9, 2019
Court Reporter: Janet Coppock

Parties:

EDWARD JOHN NOSEWICZ,

Plaintiff,

v.

JEFFREY JANOSKO,

Defendant.

Counsel:

John Springer
Sean McDermott

J. Andrew Nathan
Marni Nathan Kloster

COURTROOM MINUTES

JURY TRIAL – DAY 3

8:27 a.m. Court in session.

Discussion regarding scheduling and jury instructions.

8:36 a.m. Jurors present.

Plaintiff, Edward Nosewicz, recalled.

8:37 a.m. Direct examination of Mr. Nosewicz by Mr. McDermott.

Exhibit 21 is admitted.

8:44 a.m. Cross examination of Mr. Nosewicz by Mr. Nathan.

Plaintiff rests.

Defendant's witness, Joann Gonzales, sworn.

8:48 a.m. Direct examination of Ms. Gonzales by Ms. Kloster.

Reference to the February 28, 2017 deposition transcript of Ms. Gonzales.

Exhibit A-37 is admitted.

9:18 a.m. Cross examination of Ms. Gonzales by Mr. McDermott.

9:37 a.m. Redirect examination of Ms. Gonzales by Ms. Kloster.

Defendant's witness, Karen Duffy Sturgeon, sworn.

9:46 a.m. Direct examination of Ms. Sturgeon by Ms. Kloster.

Exhibit A-47 is admitted.

10:06 a.m. Cross examination of Ms. Sturgeon by Mr. McDermott.

10:13 a.m. Redirect examination of Ms. Sturgeon by Ms. Kloster.

Jurors excused.

10:17 a.m. Court in recess.

10:37 a.m. Court in session.

Defendant's oral motions for judgment as a matter of law pursuant to Rule 50 by Ms. Kloster.
Argument by counsel.

ORDERED: Defendant's oral motions for judgment as a matter of law pursuant to Rule 50 are DENIED, as stated on record.

10:47 a.m. Jurors present.

Defendant, Jeffrey Janosko, resumes the witness stand.

10:48 a.m. Direct examination of Mr. Janosko by Ms. Kloster.

10:58 a.m. Cross examination of Mr. Janokso by Mr. McDermott.

Defense rests.

11:01 a.m. Evidence is closed.

Mr. McDermott states there will be no rebuttal on behalf of Plaintiff.

Court instructs jurors. Jurors excused.

Defendant's renewed oral motions for judgment as a matter of law pursuant to Rule 50 by Ms. Kloster.

ORDERED: Defendant's renewed oral motions for judgment as a matter of law pursuant to Rule 50 are DENIED, as stated on record.

Discussion regarding jury instructions. Defendant's tendered Jury Instruction No. 1 is refused.

12:00 p.m. Court in recess.

1:25 p.m. Court in session.

Further discussion regarding jury instructions. Defendant's tendered jury verdict is refused.

Discussion regarding closing arguments and admitted exhibits.

1:41 p.m. Court in recess.

2:01 p.m. Court in session.

Jurors present.

Jury instructions read to jurors by the Court.

2:28 p.m. Plaintiff's closing argument by Mr. McDermott.

2:56 p.m. Defendant's closing argument by Mr. Nathan.

3:25 p.m. Plaintiff's closing rebuttal argument by Mr. McDermott.

Court Security Officer sworn.

Court instructs jurors. Jurors excused to begin deliberations.

Court confirms admitted exhibits with counsel.

3:40 p.m. Court in recess.

5:00 p.m. Court in session.

The Court has received notice that the jury has reached a verdict.

5:08 p.m. Jurors present.

Court reads verdict and polls the jury.

Court thanks jurors for their service. Jurors are released.

Court's concluding remarks.

5:13 p.m. Court in recess.

Trial concluded.

Total in-court time: 5:21